

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
HONORABLE MICHAEL L. MAU
1050 Mission Road, South San Francisco
Department 20, Courtroom L
June 12, 2026 at 9:00 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 576 6143 Password: 142907

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
9:00 AM Line 1 23-CIV-06084	RIGOBERTO CONTRERAS, ET AL VS. COUNTY OF SAN MATEO

RIGOBERTO CONTRERAS
COUNTY OF SAN MATEO

PATRICIA M. GARNER
ADAM M STODDARD

Defendant's Motion for Leave to File an Amended Answer to the Complaint

TENTATIVE RULING:

Defendant's motion for leave to file an Amended Answer to the Complaint is unopposed and is GRANTED.

California has a policy in favor of permitting amendment. Code of Civil Procedure Section 473(a); *see also, Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939. Where the opposing party will not be prejudiced, it is error to deny leave to amend. *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530. Here, defendant seeks to amend its initial Answer, and there is no showing of any prejudice.

The proposed First Amended Answer to the Complaint which was attached as Exhibit E to the March, 2, 206 Stoddard Declaration, shall be filed by June 22, 2026.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order. The Court will prepare the Order after hearing.

9:00 AM

Line 2

24-CIV-00269 HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Plaintiff's Motion to Compel (*mis-captioned by Plaintiff as*) Further Responses to Plaintiff's Request for Production of Documents, Set No. One (*but substantively it is to Compel on Form Interrogatories, Set No. One, Special Interrogatories, Set No. One, and Requests for Admissions, Set No. One*)

TENTATIVE RULING:

Plaintiff Hamid Khazaeli's Motion to Compel Further Responses from David A. Brewer, Former NT Corporation, Notify Technology Corporation, Paul F. Depond, Robert Polychron (collectively "defendants") filed August 26, 2025, is DENIED in entirety.

Sanctions in the amount of \$3,150.00 are GRANTED to defendants as prevailing party to the motion. (Code Civ. Proc., §§ 2023.010, 2023.030, subd. (a), 2030.300, subd. (d) & 2033.290 subd. (d).)

Initially, the Court notes that Plaintiff's original and/or amended Notice of Motion, stated that the instant matter was set before a prior assigned Judge. However, effective April 13, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable Michael L. Mau, Department 20, now located at 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the required Amended Notice "must specify" the location of the hearing].)

The Court notes the notice of motion is mis-captioned as a "Motion to Compel Further Responses to its Request for Production of Documents, Set No. One" because the motion is made pursuant to Code of Civil Procedure sections 2033.290 [motion to compel further response to requests for admission]; 2030.300 [motion to compel further response to interrogatories], and 2030.220 [form of answers in response] and seeks responses to "Plaintiff's Form Interrogatories General, Set No. One, Nos. 2.6 and 2.11 from DEPOND and POLYCHRON, Nos. 4.1, 12.1, 12.2, and 15.1 from Defendants; Plaintiff's Special Interrogatories, Set No. One, Nos. 1-3 from BREWER, FNTC, NTC, DEPOND, and POLYCHRON; Plaintiff's Requests for Admissions, Set No. One, Nos. 1, 3-11 from BREWER, Nos. 1-11 from FNTC, Nos. 1, 3-11 from DEPOND, Nos. 1, 3-11 from POLYCHRON; and issue of DocuSign signatures." (NOMM filed August 26, 2025, pp.1-2.) Plaintiff is reminded to properly caption and title its pleadings correctly.

A. Background

The underlying action for FEHA-based discrimination and retaliation arises from plaintiff's former employment with Notify Technology Corporation from 2006 to 2012 as enterprise sales manager. (FAC ¶9.) The named defendants include three individual non-employers— Michael Ballard, Siu Po Lee and

Sandra Basel — who testified for the defense at a 2020 in one of plaintiff’s former lawsuits regarding his employment tenure. (FAC ¶ 15.) Plaintiff seeks damages in excess of \$60,000,000. (FAC ¶31.) Because this matter has an extensive procedural history of which the parties are well-versed the Court does not repeat it here.

The instant motion was initially set for hearing on November 17, 2025 and later continued by a prior assigned department to the latest date of January 11, 2027, but on May 22, 2026, this Court *sua sponte* advanced the hearing date. The Court notes that when this case was assigned to Dept. 20 which assignment was effective on April 13, 2026, there were approximately twenty-five (25) discovery and other motions already filed, and that plaintiff himself asked this Court to advance motions that were already fully briefed, including this same motion, to an earlier date.

Relevantly, on or around October 9, 2024, plaintiff asserts having served his Form Interrogatories, Set No. One (“FI”), Special Interrogatories, Set No. One (“SI”) and Requests for Admissions, Set No. One (“RFA”) on defendants. (Declaration of Hamid Khazaeli iso motion to compel filed August 26, 2025, ¶ 3, exhibits 1-3.) On or around January 27, 2025, defendants served plaintiff with their discovery responses. (Khazaeli Decl. ¶¶4, exhibits 4-6.)

Plaintiff brings the instant motion contending that the responses are evasive, incomplete, nonresponsive, not code-compliant and lacking a privilege log. Plaintiff requests total sanctions of \$2,000 for abuse of the discovery process under Code of Civil Procedure sections 2023.030, 2024.040, 2023.050, 2030.300, including more severe sanctions such as entering judgment against defendants, as the Court sees appropriate. (MPA p.7.)

Defendants oppose the motion on several grounds. First, defendants contend that plaintiff’s motion should be denied because plaintiff impermissibly combined three distinct discovery motions (Form Interrogatories, Special Interrogatories, and Requests for Admission) into one omnibus filing. Defendants argue they are prejudiced because they are required to brief and argue three separate discovery disputes within the constraints of a single motion slot and limited hearing time which amounts to procedural gamesmanship that burdens the Court and opposing counsel. Defendants further contend their responses were legally compliant and reflect a good faith effort to provide substantive information while preserving appropriate objections. Lastly, the breadth of the meet-and-confer record – contained in Plaintiff’s own declaration and exhibits—belies plaintiff’s assertion that defense counsel refused to engage in good faith efforts to resolve the discovery dispute informally. Defendants request \$3,150.00 in sanctions for misuse of discovery process.

B. Legal Standard

“[T]he discovery statutes vest a wide discretion on the trial court in granting or denying discovery.” (*Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 378 [superseded by statute].) “ ‘The standard of review generally applicable to review of discovery orders is abuse of discretion, as management of discovery lies within the sound discretion of the trial court. [Citations.]’ [Citation.]” (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 198.)” (*Manuel v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 719, 727.)

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of

admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

Regarding written interrogatories, Code of Civil Procedure, section 2030.010 provides, “(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial.”

A party may respond to interrogatories, in writing and under oath, by (1) providing an answer containing the information sought, (2) exercising the option to produce writings, or (3) by objecting to the particular interrogatory. (Code Civ. Proc., § 2030.210 subd. (a).) Code of Civil Procedure section 2030.220 provides that, “(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.”

The form and content of a request for admission is set forth in Code of Civil Procedure section 2033.060. Upon receipt of a response to a request for admission, a party may move for an order compelling a further response if party deems the response provided evasive, incomplete. (Code Civ. Proc. § 2033.290, subd. (a)(1).)

Once a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221 [regarding interrogatories specifically].) To do so, the responding party must affirmatively show that the burden of responding would be so great, and the benefit of the information sought would be so minimal, that it would defeat the ends of justice to require the party to answer. (*Columbia Broadcasting System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.)

Trial courts possess broad discretion to manage discovery and to limit discovery that is unreasonably cumulative, overbroad, or disproportionate. (*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 380; *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.)

C. Discussion

Plaintiff contends defendants’ discovery responses at issue violate relevant statutes because the responses are evasive, incomplete to completely missing, assert boilerplate objections, and fail provide a privilege log. Plaintiff also contests the validity of DocuSign signatures. Upon review of both parties excessively long separate statements (113 pages in plaintiff’s, 134 pages in defendants’) the Court rules as follows:

Form Interrogatories

Form Interrogatory 2.6 to Paul Depond and Robert Polychron:

State:

- (a) the name, **ADDRESS**, and telephone number of your present employer or place of self employment; and
- (b) the name, **ADDRESS**, dates of employment, job title, and nature of work for each employer or self-employment you have had from five years before the INCIDENT until today.

Defendant Depond's response: Not applicable.

Defendant Depond's Amended Response:

- (a) None.
- (b) CEO, Notify Technology Company, 888 Boardman-Canfield Road Suite C, Boardman OH 44512 (November 2016 to the present); VP of Business Development, Globo Mobile Technologies, Inc., 1054 S. De Anza Blvd., Suite 105, Santa Clara, CA 95129 (no longer in business, no address)

Defendant Polychron's response: (a) Self-employed at 2.5 a). 914-391-0777

(b) N/A

Basis for motion to compel: the interrogatory is asking for specific information (i.e., facts, present and past employment, job title, address, tel no., nature of the work, self-employment, etc.) and not a compilation. "Not applicable" is incomplete, non-responsive, evasive and non-code compliant. (PSS pp.3-5.)

Defendant Polychron's Response to Motion:

The motion should be denied as moot as to this Form Interrogatory because Mr. Polychron served an amended response. (*See* Declaration of John Claassen filed March 3, 2026, Ex. B.)

RULING: DENY. Defendants have made a reasonable and good faith effort to provide the responsive information within the scope of the interrogatory. Additionally, the Court notes an amended response was served on March 3, 2026.

Form Interrogatory 2.11 to Paul Depond and Robert Polychron:

At the time of the INCIDENT were you acting as an agent or employee for any PERSON? I so, state: (a) the name, **ADDRESS**, and telephone number of that PERSON; and (b) a description of your duties.

Defendants' Response: No.

Basis for Motion: The interrogatory is asking for specific information about employment. "No." is incomplete, non-responsive, evasive and non-code compliant response.

Defendants' Response to Motion: Because the truthful answer to the threshold question is no, there is no additional information to provide.

RULING: DENY. The answer is complete.

Form Interrogatory 4.1

At the time of the INCIDENT, was there in effect any policy of insurance through which you were or might be insured in any manner (for example, primary, pro-rata, or excess liability coverage or medical expense coverage) for the damages, claims or actions that have arisen out of the INCIDENT?...

Defendants' Response: No.

Basis for Motion to Compel: The interrogatory is asking for specific information about insurance coverage. "No." is incomplete, non-responsive, evasive and non code compliant response.

Defendants' Response to Motion: That answer is complete and fully responsive to the question asked.

RULING: DENY. The answer is complete.

Form Interrogatory 12.1

State the name, ADDRESS, and telephone number of each individual: (a) who witnessed the INCIDENT or the events occurring immediately before or after the INCIDENT; (b) who made any statement at the scene of the INCIDENT; (c) who heard any statements made about the INCIDENT by any individual at the scene, and (d) who YOU OR ANYONE ACTING ON YOUR BEHALF CLAIM HAS KNOWLEDGE OF THE INCIDENT (except for expert witnesses covered by Code of Civil Procedure section 2034).

Defendants' Response: (a) Paul Depond, David A. Brewer, Robert Polychron, all in care of Claassen Law Corp, 1990 N. California Blvd., 8th Floor, Walnut Creek, CA 94596, 925-204-3885; Hamid Khazaeli (contact information known to Hamid Khazaeli); (b) unknown; (c) none; (d) none.

Basis for Motion to Compel: The interrogatory is asking for specific information about witnesses. "No." is incomplete, non-responsive, evasive and non-code compliant response. Responding parties were obligated to disclose all of their witness, but failed. For example, there are at least six or seven known fact character witnesses only for BREWER and FNTC that were not disclosed. Similarly, there are additional witnesses for other defendants. They all must be disclosed.

Defendants' Response to Motion: Defendants made a reasonable inquiry and disclosed the individuals known to them who fall within the defined categories.

RULING: DENY. Speculation regarding potential witnesses does not demonstrate defendants' did not answer the interrogatory fully.

Form Interrogatory 12.2

Have YOU OR ANYONE ACTING ON YOUR BEHALF interviewed any individual concerning the INCIDENT? If so, for each individual state: (a) the name, ADDRESS, and telephone number of the individual interviewed; (b) the date of the interview; and (c) the name, ADDRESS, and telephone number of the PERSON who conducted the interview.

Defendants' Response: Responding Party objects to this interrogatory on the grounds that, to the extent it seeks information about who the Responding Party's attorney has chosen to interview, it seeks the disclosure of an attorney's thoughts and impressions regarding which allegations are material and which allegations are not. Such information is protected by the attorney work product privilege and work product privilege. Responding Party also objects to this interrogatory to the extent it seeks the disclosure of any other information or communications that are protected by the attorney-client privilege or attorney work product privilege. Subject to and without waiver of the foregoing objections, Responding Party responds as follows: no.

Basis for Motion to Compel: Defendants failed to produce a privilege log and the required sufficient factual information.

Defendants' Response to Motion: Subject to and without waiving those objections, Defendants responded that there are no responsive interviews to disclose. That is a complete and straightforward answer based on reasonable inquiry.

RULING: DENY. The answer is complete, and a privilege log is not necessary because there is no information to disclose.

Form Interrogatory 15.1

Identify each denial of a material allegation and each special or affirmative defense in your pleadings, and for each: (a) state all facts on which you base the denial or special or affirmative defense; (b) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and (c) identify all DOCUMENTS and other tangible things that support your denial or special or affirmative defense, and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT.

Defendants' Response: Responding Party objects to this interrogatory on the grounds that it seeks the disclosure of an attorney's thoughts and impressions regarding which allegations are material and which allegations are not.

Basis for Motion to Compel: The (amended) response is incomplete, non-responsive, evasive and non-code compliant.

Defendants' Response to Motion: While objections were asserted and preserved, Defendants also provided a substantive amended response identifying the factual bases for their denials and affirmative defenses, identifying persons with knowledge, and identifying supporting documents. Plaintiff's demand for a privilege log is also misplaced in this context. This interrogatory does not request the production of specific documents; it seeks identification of documents supporting defenses. Defendants identified responsive documents. To the extent certain categories of information may implicate privacy or confidential business concerns, Defendants appropriately noted that such information would be produced subject to authorization or protective order. That is consistent with California law recognizing that privacy rights are qualified and may require balancing, not wholesale disclosure without safeguards. There are no withheld documents being described in conclusory fashion without identification. Finally, Plaintiff's repeated references to burden, search terms, and electronic storage do not alter the analysis. Form Interrogatory 15.1 is not a demand for a document search; it is a contention interrogatory. Defendants conducted a reasonable inquiry and provided the facts, persons, documents known.

RULING: DENY. Defendants provided an amended response identifying the factual bases for their denials and affirmative defenses, identifying persons with knowledge, and identifying supporting documents.

Special Interrogatories

Special Interrogatory No.1

Provide CONTACT INFORMATION for Michael Ballard. (For purposes of this interrogatory and each subsequent interrogatory in which the term appears, "CONTACT INFORMATION" means physical address of residence, separate mailing address if any, email address, and telephone number.

Special Interrogatory No. 2

Provide CONTACT INFORMATION for Siu Po Lee.

Special Interrogatory No. 3

Provide CONTACT INFORMATION for Sandra Basel.

The Court addresses the three special interrogatories altogether because the responses and basis for the motion are the same.

Defendants' Response: Responding Party objects to this Special Interrogatory on the grounds that it seeks the disclosure of personal information of third parties that is not relevant to this Action and is not likely to lead to the disclosure of admissible evidence.

Basis for Motion to Compel: The interrogatory seeks the personal contact information of a non-party who testified in the 2020 trial, and related interrogatories seek the same information for other individuals who likewise testified in that prior action.

Defendants' Response to Motion: The request is too broad and lacks relevance because the underlying action is limited to two FEHA claims for discrimination and retaliation. It is not an appeal or retrial of the 2020 matter, which was for fraudulent conveyance. The Court has already granted a special motion to strike as to allegations concerning purportedly false testimony in that proceeding. Those allegations were determined to be legally deficient and were removed from the case. As a result, the 2020 testimony itself is no longer an operative issue in this action, and discovery aimed at revisiting it is not relevant.

RULING: DENY. Overbroad and lacking relevance.

Requests for Admission

As with the special interrogatories, because the same objections and arguments have been made with respect to each defendant for whom the request for admission is directed, the Court rules on all requests in unison.

No. 1: Admit that defendant David A. Brewer has been joint employer.

Defense Objection: This request improperly bundles multiple alleged alter-ego relationships into a single global proposition, the compound objection is justified

Basis for Motion: This is one of the facts that establishes being covered employer and how is being joint employer compound? It is only asking about a single fact.

RULING: DENY as to all. Overbroad and vague.

No. 2 (only as to FNTC) Admit that defendants and each of them in this action have been alter ego of one another.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: RFA # 2 is only asking whether the responding party are defendants' alter ego which is a fact that establishes being covered employer.

RULING: DENY as to all. Overbroad and vague.

No. 3 and No. 4 relate to admitting (as to all defendants) to making made false testimonies in 2020 trial.

Defendant's Response: Responding Party objects to this Request for Admission on the grounds that the Court struck Plaintiffs' claims regarding allegedly false testimonies. This RFA therefore seeks the disclosure of evidence that is not relevant and is not likely to lead to the disclosure of admissible evidence because the burden, expense, or intrusiveness of that discovery clearly

outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.

Basis for Motion: This request is regarding Responding Party's credibility. Responding Party changed the request for admission on its own. Responding Parties are not free to re-write requests for admissions so that provide a different response.

RULING: DENY as to all. Lacking relevance and overbroad.

No. 5 Admit that defendants and each of them in this action have been covered employees for illegal harassment under FEHA since 2010 to now. Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: this is not compound.

RULING: DENY as to all. Overbroad and vague.

No. 6 Admit that defendants and each of them have been covered employees for illegal discrimination and retaliation under FEHA since 2010 to now.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: The request is not compound, asking for single fact related to allegations in the FAC.

RULING: DENY as to all. Overbroad and vague.

No. 7 Admit that defendants and each of them in this action have been illegally harassing plaintiff.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: The request is not compound, asking for single fact related to allegations in the FAC.

RULING: DENY as to all. Overbroad and vague

No. 8 Admit that defendants and each of them in this action have been illegally discriminating and retaliating against plaintiff.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: The request is not compound, asking for single fact related to allegations in the FAC.

RULING: DENY as to all. Overbroad and vague

No. 9 Admit that defendants and each of them in this action have been refusing to provide Job verification of plaintiff.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.

Basis for Motion: The request is not compound, asking for single fact related to allegations in the FAC.

RULING: DENY as to all. Overbroad and vague

No. 10 Admit that defendants and each of them in this action have been preventing plaintiff to get hired since at least since January of 2012.

Defendant's Response: Compound and in violation of Code of Civil Procedure section 2033.060.
Basis for Motion: The request is not compound, asking for single fact related to allegations in the FAC.

RULING: DENY as to all. Overbroad and vague

No. 11 Admit that defendants and each of them in this action have been subject to California employment law in the last 15 years.

Defendant's Response: Overbroad and burdensome.

Basis for Motion: is only asking to admit the defendants have been subject to California employment law in the last 15 years. Responding Party starts its response boilerplate objections. The response is evasive too. Responding party is a company and it does not have to do anything with being an officer that Responding Party has mentioned in its response and must have responded as a company. Allegations in the FAC does go back to over a decade, then 15 years is absolutely reasonable span of time.

RULING: DENY as to all. Overbroad and vague

Verification of Electronic Signatures

The validity and usage of electronic signature verification, including DocuSign, was addressed in the Court's February 2, 2026 Minute Order at the hearing for plaintiff's motion to compel further responses to plaintiff's request for production of documents, set one. The Order stated wet-ink signatures were not required at this time because electronic verifications are permissible under the Uniform Electronic Transactions Act, subject to authentication. The Court does not find any circumstances, nor any compelling argument, to alter this decision.

D. Sanctions

Sanctions are authorized against a party who unsuccessfully brings a motion to compel further directed at interrogatories, requests for production or RFAs, unless the Court finds the party made the motion "with substantial justification" or other circumstances make the sanction "unjust." (Code Civ. Proc. §§ 2030.300, subd. (d), 2031.100, subd. (d), 2031.290, subd. (d), 2023.030, subd. (a).) Sanctions are mandatory against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response unless other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2033.290, subd. (d).)

Because the motion is DENIED in its entirety, plaintiff is not entitled to any sanctions. As the court does not find circumstances rendering a sanction unjust and pursuant to a duly noticed request in its opposition, defendants are entitled to sanctions. Defendants request an award for attorney fees in the amount of \$3,150.00 for seven hours work billed at counsel's reasonable hourly rate of \$450.00 per hour. (Declaration of John Claassen, Esq. ¶ 11.) The court finds the time spent and hourly rate are reasonable in this jurisdiction. (Code Civ. Proc., § 2023.030, subd. (a).) Accordingly, the request for sanctions of \$3,150.00 is GRANTED. Plaintiff is ordered to pay sanctions of \$3,150.00 to Defendants thru their attorney of record, within 30- days of the service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

9:00 AM

Line 3

24-CIV-00269 HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Plaintiff's Motion to Compel Further Responses Under C.C.P. Section 2016.090

TENTATIVE RULING:

Plaintiff's Motion to Compel Further Initial Disclosures (C.C.P. section 2016.090) is DENIED.

Initially, the Court notes that Plaintiff's original and/or amended Notice of Motion, stated that the instant matter was set before a prior assigned Judge. However, effective April 13, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable Michael L. Mau, Department 20, now located at 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the required Amended Notice "must specify" the location of the hearing].)

A. Background

The underlying action for FEHA-based discrimination and retaliation arises from plaintiff's former employment with Notify Technology Corporation from 2006 to 2012 as enterprise sales manager. (FAC ¶9.) The named defendants include three individual non-employers— Michael Ballard, Siu Po Lee and Sandra Basel — who testified for the defense at a 2020 in one of plaintiff's former lawsuits regarding his employment tenure. (FAC ¶ 15.) Plaintiff seeks damages in excess of \$60,000,000. (FAC ¶31.) Because this matter has an extensive procedural history of which the parties are well-versed the Court does not repeat it here.

The instant motion was initially set for hearing on March 9, 2026 and later continued by a prior assigned department to the latest date of October 19, 2026, but on May 22, 2026, this Court *sua sponte* advanced the hearing date. The Court notes that when this case was assigned to Dept. 20 which assignment was effective on April 13, 2026, there were approximately twenty-five (25) discovery and other motions already filed, and that plaintiff himself asked this Court to advance motions that were already fully briefed, including this same motion, to an earlier date.

B. Legal Standards

Discovery is permitted as to any nonprivileged matter relevant to the subject matter involved in the pending action, subject to proportionality limits. (Code Civ. Proc., §§ 2031.010, 2017.020.)

Trial courts possess broad discretion to manage discovery and to limit discovery that is unreasonably cumulative, overbroad, or disproportionate. (*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 380; *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.)

C. Discussion

California Code of Civil Procedure § 2016.090 establishes a mandatory initial disclosure framework for civil actions filed on or after January 1, 2024. (Code Civ. Proc. section 2016.090.) Under subdivision (a)(1), within 60 days of a demand by "any party to the action," each party that has appeared must provide to the other parties an initial disclosure including: the names and contact information of persons likely to have discoverable information; copies or descriptions of all relevant documents, electronically stored information, and tangible things in the disclosing party's possession; and any insurance policies or contractual agreements under which a judgment may be satisfied or indemnified. (*Id.*)

However, subdivision (c) contains a categorical exemption:

"This section does not apply to any party in the action who is not represented by counsel." (*Id.* at Section 2016.090 subd. (c).)

Because of subdivision (c)'s reference to the whole section, by its plain language the entire statutory framework of Section 2016.090, including both the obligation to provide disclosures and the mechanism to demand them, is completely inapplicable to parties who are not represented by counsel.

Here, Plaintiff, who is not represented by counsel, moves to compel Defendant David A. Brewer, Former NT Corp., Notify Technology Corporation, Paul F. Dupond, and Robert Polychron "to further amend, disclose and produce documents and information under to CCP section 2016.090." (Notice of Motion, at p. 1.) The statute does not provide Plaintiff the authority to make the Section 2016.090 demand, let alone the authority to move to compel further responses.

The Motion is therefore DENIED.

Sanctions

Defendant's Opposition provides proper notice of a request for monetary sanctions against Plaintiff for misuse of the discovery process pursuant to Code Civ. Proc. sections 2023.010, 2031.310(h). (Opp. at 9:13-17.) Plaintiff's Motion was made without a statutory basis or other authority, so it is a misuse of the discovery process and monetary sanctions are appropriate. Defendants' counsel spent three hours drafting the Opposition to this Motion, at a reasonable rate of \$450 per hour, for a total of \$1,350.00. (Claassen Decl., ¶2.)

Accordingly, the request for sanctions of \$1,350.00 is GRANTED. Plaintiff is ordered to pay sanctions of \$1,350.00 to Defendants thru their attorney of record, within 30- days of the service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

9:00 AM

Line 4

24-CIV-00269 HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set No. 3

TENTATIVE RULING:

Initially, the Court notes that Plaintiff's original and/or amended Notice of Motion, stated that the instant matter was set before a prior assigned Judge. However, effective April 13, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable Michael L. Mau, Department 20, now located at 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the required Amended Notice "must specify" the location of the hearing].)

Plaintiff Hamid Khazaeli's (Amended and Combined) Motion to Compel Further Responses to RFP Set No. Three (the "Motion") is DENIED.

Plaintiff's Request for Monetary Sanctions is DENIED.

Defendants' Request for Monetary Sanctions is DENIED.

The Court notes that for the discovery at issue here, Plaintiff declares to have served the papers himself, which is improper. (Code Civ. Proc., § 1013a, subd. (1) (affidavit must state one is "not a party to the cause".) Defendants do not object and have responded, so there is no prejudice. The Court finds that the defect has been waived. (*Tate v. Sup. Ct.* (1975) 45 Cal.App.3d 925, 929 ["It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion."].) Plaintiff is cautioned that per code, he is not allowed to serve such papers by himself as he is a named party.

A. Background

The underlying action for FEHA-based discrimination and retaliation arises from plaintiff's former employment with Notify Technology Corporation from 2006 to 2012 as enterprise sales manager. (FAC ¶9.) The named defendants include three individual non-employers— Michael Ballard, Siu Po Lee and Sandra Basel — who testified for the defense at a 2020 in one of plaintiff's former lawsuits regarding his employment tenure. (FAC ¶ 15.) Plaintiff seeks damages in excess of \$60,000,000. (FAC ¶31.) Because this matter has an extensive procedural history of which the parties are well-versed the Court does not repeat it here.

The instant motion was initially set for hearing on February 9, 2026 and later continued by a prior assigned department to the latest date of October 19, 2026, but on May 22, 2026, this Court *sua sponte*

advanced the hearing date. The Court notes that when this case was assigned to Dept. 20 which assignment was effective on April 13, 2026, there were approximately twenty-five (25) discovery and other motions already filed, and that plaintiff himself asked this Court to advance motions that were already fully briefed, including this same motion, to an earlier date.

B. Legal Standards

Discovery is permitted as to any nonprivileged matter relevant to the subject matter involved in the pending action, subject to proportionality limits. (Code Civ. Proc., §§ 2031.010, 2017.020.)

A party may move to compel further responses to document demands where a statement of compliance is incomplete, a representation of inability to comply is inadequate, or objections are without merit or too general. (Code Civ. Proc., § 2031.310(a).) The moving party bears the initial burden of demonstrating good cause with specific facts. (Code Civ. Proc., § 2031.310(b)(1).)

Document requests must describe the items sought with reasonable particularity. (Code Civ. Proc., § 2031.030(c)(1); *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 222.) Meet-and-confer efforts are mandatory and must be reasonable and in good faith; perfunctory correspondence is insufficient. (Code Civ. Proc., §§ 2016.040, 2031.310(b)(2); *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438.)

Where documents are withheld based on privilege or work product, the responding party must provide sufficient factual information to evaluate the claim, which may require a privilege log. (Code Civ. Proc., § 2031.240(c)(1).)

Trial courts possess broad discretion to manage discovery and to limit discovery that is unreasonably cumulative, overbroad, or disproportionate. (*Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 380; *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.)

C. Discussion

Plaintiff has propounded five sets of requests for production of documents (“RFP”) directed to five different Defendants. Plaintiff brings the instant Motion seeking to compel further production of documents and information, without objections, as to specific requests in all five sets.

The specific RFP at issue are: (1) RFP, Set Three, Nos. 25-26, propounded upon Defendant David A. Brewer; (2) RFP, Set Three, Nos. 32-33, propounded upon Defendant Former NT Corp.; (3) RFP, Set Three, Nos. 25-26, propounded upon Defendant Notify Technology Corporation (an Ohio Corporation); (4) RFP, Set Three, Nos. 31-32, propounded upon Defendant Paul F. Depond; and (5) RFP, Set Three, Nos. 31-32, propounded upon Defendant Robert Polychron. The requests are essentially the same but directed at different defendants.

The first RFP of each set at issue seeks “Any and all ‘DOCUMENTS’ that are identified by YOU in response to the Mandatory Initial Disclosure,” defining the capitalized terms. The second RFP of each set at issue seeks “Any and all DOCUMENTS that are identified by YOU in response to Plaintiff’s Request for Admission Set One and Two.” (See Khazaeli Decl., ¶ 3, & pp.6, 8, 10, 12, & 14, in Exh. 1.)

Plaintiff further seeks an Order compelling Defendants to produce either the information required to authenticate the electronic signatures on their Verifications, or else Verifications with wet signatures, an electronic copy of Defendants' April 2025 Proof of Service of documents by mail, a privilege log, and Code-compliant responses.

Plaintiff asks the Court to require Defendants to pay monetary sanctions in the amount of "\$1,000 per Defendant & per attorney plus the costs and fees of \$1,000.00 under CCP 2023.030 and other applicable authorities." (Amended Motion, 2:21-22.)

Defendants request monetary sanctions in the amount of \$2,250.00 for Counsel's time spent opposing the Motion. (Claassen Decl., ¶ 6.)

The Adequacy of Defendants' Responses and Document Production

Plaintiff asserts that the requested information is not only relevant and reasonably calculated to lead to admissible evidence, but also critical to Plaintiff's claims.

The Completeness of Document Production

Plaintiff appears to argue that Defendants are withholding some documents and/or parts of produced documents. (MPA iSo Motion, 3:22-27, & 4:2-7.) However, nowhere in Plaintiff's MPA does he identify specific documents claimed to be omitted or incomplete.

Plaintiff's argument as to the existence of withheld, privileged documents is equally unpersuasive, such as: "They agreed to produce all non-privilege documents (implying there are privilege documents) without producing privilege and redaction logs." (Reply, 3:16-17.) Moreover, Plaintiff appears to identify some documents of which he is aware that were not produced, though he does so in a context in which they seem not to have been required to be produced: "there were at least documents such as trial transcripts that were in possession and custody of Defendants and should have been identified in response to identification of documents in their response to the RFAs." (*Id.*, 3:18-20.)

As to the second RFP in each of the five Sets Three, Plaintiff argues that:

[Defendants] should have made reasonable inquiry such as but not limited and review the documents and information available to them such as Plaintiff's declaration submitted in opposition to their Anti-SLAPP motion and transcript of 2020 trial and then in response to Plaintiff's Request for Production of Documents No. 26 from BREWER, No. 33 from FNTC, No. 26 from NTC, No. 32 from DEPOND, No. 32 from POLYCHRON, identified at least these documents among other ones.
(SS, 5:13-18.)

Plaintiff speculates that Defendants must have reviewed some documents in determining that they identified no documents in responding to Plaintiff's underlying Requests for Admission ("RFA"), and that Plaintiff seeks the documents that Defendants presumably would have had to look at, to determine that they would not identify any documents in admitting, denying, stating their inability to comply with, or objecting to each RFA. This is speculation and circular reasoning. Defendants in contrast argue that it would be odd to respond to RFA with anything other than admission, denial, or a statement of inability to comply, though Defendants responded with only objections to Sets Two. (*See* Claassen Decl., ¶ 2, & Exh. B.) Defendants' Responses to Sets One include objections and denials. (*See* Claassen Decl., ¶ 2, &

Exh. A.) Defendants are correct that none of the Defendants identified a document in response to an RFA. Further, the only document the Defendants would have had to review to make this conclusion, would be their respective Response to the RFA's. This is conclusive and forecloses the ability to compel on the second RFP in each of the five RFP's at issue, i.e. there is nothing to compel.

Moreover, Plaintiff shows that Defendants pointed out to him that providing a privilege log: would be absurd anyway because the only documents that could have been disclosed based on the two requests you served could not by definition have been privileged. (i.e. documents identified in RFAs (none) and documents identified in initial disclosures (by definition, my client was not asserting privilege over them). (Khazaeli Decl., Meet-and-Confer Response from Defendants dated July 16, 2025, at p.155, in Exh. 10.) Defendants argue similarly in Opposition. This is logical.

Plaintiff claims to have identified at least one category of documents of which he is aware that has not been produced, however he only identifies it as a "partial document production and partial identification." (Khazaeli Decl., ¶ 7, Exh. 7 & 8.) This description is a generalization, lacks specificity, and is not an actual category of documents. Additionally, the records sought in that Exhibit 7 (*Id.*), are expressly related to and from a defective initial disclosure demand. As noted on today's calendar as motion line # 3 in this same case, Plaintiff's initial disclosures demanded under Code of Civil Procedure ("CCP") Section 2016.090 has a fatal defect, as Plaintiff is not represented by counsel and therefore cannot even make such a demand. "This section does not apply to any party in the action who is not represented by counsel." CCP § 2016.090(c). The Court views any production that Defendants did make in response to the defective Section 2016.090 as a voluntary production, which is not a proper basis for this motion to compel. Additionally, neither the defective Section 2016.090 demand nor Defendants Response were brought before the Court on this motion, and thus Plaintiff fails to meet its initial burden of proof.

Compliance with Code of Civil Procedure Section 2031.280

Per Plaintiff's assertions, Defendants' mandatory initial disclosures were woefully deficient and non-Code-compliant. Again, this argument ignores the fact that Plaintiff had no authority to even make a demand for initial disclosures. CCP § 2016.090(c). Plaintiff thus argues it was forced to propound the RFP, Set Three to obtain documents that Defendants plan to use at trial. Defendants again evaded, while failing to provide a privilege log. Even after agreeing before the Court at the Informal Discovery Conference ("IDC") of July 10, 2025, it is argued Defendants have not done so, although all of the requested documents are in electronic format and easily could be produced. (Khazaeli Decl., ¶¶ 8-11.)

The Court's comment on point was that:

As to substantive issues, Plaintiff complains that Defendants' responses as to the two Requests for Production ("RFPs") making up Plaintiff's Set No. Three of RFPs are insufficient. Defendants agreed to provide [] further responses and re-serve documents with a "slip-sheet" for purposes of compliance with CCP § 2031.280. Defendants committed to completing the foregoing by 07/18/2025, if not sooner.
(Minute Order, IDC, July 10, 2025.)

Apparently referring to Defendants' initial disclosures, Plaintiff asserts that Defendants "disclosed vaguely and too generally numerous documents that they could be in tens of thousands of pages in just one single line to be used at trial by them" (MPA iSo Motion, 3:23-24), and declares that Defendants "very vaguely identified tens of thousands of pages by approximately in line which was absolutely inadequate" (Khazaeli Decl., ¶ 3). Plaintiff further declares that Defendants' amended responses served

before the IDC of July 10, 2025, “suffered some similar deficiencies.” (*Id.*, ¶ 7, & Exh. 8.) Plaintiff then declares that after the IDC, Defendants “only reserved what they already served on 7/8/25.” (*Id.*, ¶ 8.)

Plaintiff’s Separate Statement (“SS”) states that:

Defendants failed to identify which documents respond to the Document Requests in violation of C.C.P. section 2031.280(a). The responses should have been amended in compliance with C.C.P. section 2031.280(a). They failed to include a privileged log for all the documents they revoke claim of privilege.
(SS, 3:25-4:2.)

Plaintiff declares Exhibit 8 of his Declaration to show the defective “partial document production and partial identification” (Khazaeli Decl., ¶ 7) that Defendants served before the IDC at which they agreed to “re-serve documents with a ‘slip-sheet’ for purposes of compliance with CCP § 2031.280” (Minute Order, IDC, July 10, 2025), and again served after the IDC (Khazaeli Decl., ¶ 8). Pages 78 and 122 of Exhibit 8 appear to show compliance with subdivision (a) of Code of Civil Procedure section 2031.280.

The parties also argue about Defendants’ proof of service (“PoS”) of document production by mail of April 2025 (Defendants show a PoS dated April 1, 2025, for “DEFENDANTS’ DOCUMENT PRODUCTION KVB000180-KVB004649” (Claassen Decl., ¶ 5, & p.71, in Exh. E)). Plaintiff argues there was only a service of 848, rather than some 4,500, pages of documents. (*See, e.g.*, Reply, 5:22; cf. Khazaeli Decl., Meet-and-Confer Response from Defendants dated July 16, 2025, at p.155, in Exh. 10 (“My clients complied with the agreement to re-produce the document production. We did so on July 10, 2025 with a slip sheet that specified the request to which it responded.”) (emphasis added). Plaintiff argues generally, without substantiation, that the actual production fell short of either number. (Khazaeli Decl., ¶ 7, & Exh. 8.)

Defendants declare that they have produced over 4,500 pages of documents, and believe that they have produced all documents responsive to Plaintiff’s RFP, Set Three. (Claassen Decl., ¶ 4.) Defendants further assert that Plaintiff’s reliance on Code of Civil Procedure section 2031.280 is misplaced, as that section goes to the format of production. Regardless, the parties agreed and it is reflected that compliance with this section could be by a “slip sheet.” *See* Minute Order, IDC, July 10, 2025. Plaintiff fails to meet its burden to demonstrate a lack of compliance.

Verification of Electronic Signatures

The validity and usage of electronic signature verification, including DocuSign, was addressed in the Court’s February 2, 2026 Minute Order at the hearing for plaintiff’s motion to compel further responses to plaintiff’s request for production of documents, set one. The Order stated wet-ink signatures were not required at this time because electronic verifications are permissible under the Uniform Electronic Transactions Act, subject to authentication. The Court does not find any circumstances, nor any compelling argument, to alter this decision.

The Proof of Service by Mail of April 2025

Plaintiff asserts that before the Court at the IDC of July 10, 2025, Defendants agreed to email him a copy of the subject PoS, but never did so. The Court does not have record of this agreement, but notes that Defendants show such a PoS in Reply. (Claassen Decl., ¶ 5, & Exh. E). The issue is thus moot.

Meet-and-Confer

The parties argue about the ineffective meet-and-confer process. It appears that Defendants' counsel has proceeded in writing rather than by telephone:

You purport to "recommend" a conference call. I disagree that a conference call would be useful. Indeed, in prior meet and confer phone calls in this case, you have spent the time, not to meet and conferring in good faith, but largely discoursing on procedure and the like. Your phone calls have been far from efficient and I do not believe another such phone call would be effective. (Khazaeli Decl., p.156, in Exh. 10.)

Defendants' counsel asserts that this is because Plaintiff sued him personally in this very same case. (Opp., 4:19-22.)

The purpose of the meet-and-confer requirement is to "lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (*Stewart v. Colonial W. Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016.) The parties' difficulty with this process has clearly not reduced the burden on the court, and it may still be suitable for treatment by a discovery referee, though that is still to be decided. *See*, Order to Show Cause Hearing re: Why Discovery Referee Should not be Appointed for the Discovery Motions, currently set for hearing on August 14, 2026 per the Court's Registry.

In summary, Plaintiff's (Amended and Combined) Motion to Compel Further Responses to RFP Set No. Three is DENIED.

The Requests for Sanctions Are Denied.

Plaintiff seeks sanctions as described *supra*. Defendants assert that Plaintiff's request for sanctions should be denied because: Defendants have made significant efforts to comply with discovery and their responses are Code-compliant; Defendants have acted with substantial justification in opposing the Motion; and also that a self-represented party or attorney cannot recover attorney's fees (*Trope v. Katz* (1995) 11 Cal.4th 274, 280-281). It is not clear on what basis Plaintiff requests fees, when he has incurred no such fees.

Defendants' Opposition notices a request for sanctions. (Opp., 8:16-9:7.) Defendants request monetary sanctions in the amount of \$2,250 for Counsel's time spent opposing the Motion. (Claasen Decl., ¶ 6.)

The Court finds that despite the aggressive tone of both sides, on this specific motion the imposition of sanctions on either party would be unjust and therefore both requests are DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

9:00 AM

Line 5

25-CIV-00912 YANG MIN YANG VS. JOSEPH GIRAUDO, ET AL

YANG MIN YANG
JOSEPH GIRAUDO

JONATHAN E. MADISON
DAVID M. LIU

Defendant Royal Business Bank's Demurrer to Plaintiff's First Amended Complaint

TENTATIVE RULING:

Defendant Royal Business Bank's Demurrer to Plaintiff Yang Ming Yang's First Amended Complaint is SUSTAINED IN PART and OVERRULED IN PART.

Plaintiff Yang Ming Yang may file a Second Amended Complaint correcting defects in the fifth cause of action no later than ten (10) days after service of written notice of entry of the formal order.

Defendant Royal Business Bank's Request for Judicial Notice is GRANTED, but only as to the existence of the documents as court records and recorded documents but not to the truth of any matter asserted therein. (See *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194.)

As a preliminary matter, due to the absence of any apparent prejudice, the Court has considered the late-filed opposition in exercise of its discretion. (See *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202.)

A. Legal Standard on Demurrer

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) The demurrer may be made to the entire complaint or to any of the cause of action therein. (Code of Civ. Proc., § 430.50, subd. (a).)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) And to be sustained, a “demurrer must dispose of an entire cause of action.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, courts accept the factual allegations of the complaint and any matters of which judicial notice can be taken but disregards contentions, deductions, and conclusions. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) “The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) Thus, the complaint is

construed liberally (see Code Civ. Proc., § 452), and facts that may be inferred from those expressly alleged must also be accepted as true (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405).

B. 1st Cause of Action: UCL Violation

The first cause of action is for RBB's alleged violations of the Unfair Competition Law by, *inter alia*, engaging in business practices made unlawful by the California Homeowner Bill of Rights ("HBOR"). (Aug. 7, 2025 First Amended Complaint ("FAC"), ¶ 23.) RBB contends this cause of action must fail because, according to RBB, the other causes of action set forth in the First Amended Complaint ("FAC") must fail. However, as discussed below, the FAC adequately alleges violations of HBOR, such that the UCL claim stands. Accordingly, the demurrer to the first cause of action is OVERRULED.

C. 2nd & 3rd Causes of Action: HBOR Violations

The second and third causes of action are for violations of HBOR, based on RBB's alleged failures to contact Plaintiff Yang Ming Yang before recording a notice of default and to provide a single point of contact. (FAC, ¶¶ 15, 33, 42.)

RBB's first argument with respect to these causes of action is that the HBOR does not apply because Yang did not occupy the subject property as his principal residence. RBB points to certain bankruptcy filings purportedly filed by Yang—though the names on some of the filings differ—and contends the filings constitute judicial admissions that the subject property was not owner-occupied. (See Dec. 5, 2025 Request for Judicial Notice ("RJN"), Exhs. 6–9.)

Pleadings in prior litigation do not constitute binding *judicial* admissions for purposes of later litigation, though they may have evidentiary value as admissions against interest. (See, e.g., *Salazar v. Upland Police Dept.* (2004) 116 Cal.App.4th 934, 946 [fact party made admission in stipulation in other case was subject to judicial notice]; *Jones v. Tierney-Sinclair* (1945) 71 Cal.App.2d 366, 374 [statement in pleading filed in prior case was admissible admission against interest].) Even if one were inclined to deem the statements therein judicially noticeable as statements against interest, "[w]hen judicial notice is taken of a document ... the truthfulness and proper interpretation of the document are disputable." (*Ragland v. U.S. Bank National Association*, *supra*. 209 Cal.App.4th at p. 194.) Moreover, even were one to accept the truth of the matters asserted in Yang's bankruptcy filings, they do not establish that Yang himself did not occupy the real property that is the subject of this litigation at *none* of the relevant time periods. (See RJN, exhs. 6–9 [no affirmative indication of extended non-occupation].)

RBB also contends that the third cause of action fails to allege a violation of Civil Code section 2923.55. That section provides in relevant part that a loan servicer shall not record a notice of default until thirty days after the servicer contacts the borrower "in person or by telephone in order to assess the borrower's financial situation and explore options for the borrower to avoid foreclosure" or attempts to make contact by undertaking statutorily defined "due diligence." (Civ. Code, § 2923.55, subds. (b)(2)(A), (f).) According to RBB, the FAC admits the requisite contact was made, because the notice of default recites it and the Complaint alleges Yang sought a loan modification from RBB and spoke with its agents telephonically. (FAC, ¶¶ 12–13, exh. B.)

The truth of the matters recited in recorded documents are not subject to judicial notice. And the fact the FAC alleges that Yang spoke with RBB at an unspecified time does not mean RBB contacted Yang thirty days before recording the notice of default as required by HBOR.

As for the third cause of action, RBB contends it fails to allege a violation of Civil Code section 2923.7. That statute requires a loan servicer to establish a single point of contact with whom the borrower can discuss alternatives to foreclosure. According to RBB, the FAC admits a single point of contact was assigned.

The FAC does allege that RBB initially assigned a single point of contact, but it also alleges that RBB repeatedly changed the contact without notice to Yang. (FAC, ¶ 15.) If true, this would be a violation, because the statute requires “the single point of contact [to] remain assigned to the borrower’s account until the mortgage servicer determines that all loss mitigation options offered by, or through, the mortgage servicer have been exhausted or the borrower’s account becomes current.” (Civ. Code, § 2923.7, subd. (c).)

Accordingly, the demurrers to the second and third causes of action are OVERRULED.

D. 4th Cause of Action: Quiet Title

Pursuant to the ruling on the accompanying motion to strike, the demurrer to the fourth cause of action is MOOT.

E. 5th Cause of Action: Wrongful Foreclosure

The fifth cause of action is for wrongful foreclosure, based on the same alleged conduct constituting the purported negligence and underlying the purported HBOR violations. (FAC, ¶¶ 59–65.)

An element of a cause of action for wrongful foreclosure is a tender of the balance of the loan (either the full balance or the amount required to be entitled to reinstatement) or circumstances excepting the plaintiff from the tender requirement. (See *Chavez v. Indymac Mortgage Services* (2013) 219 Cal.App.4th 1052, 1062; *Turner v. Seterus, Inc.* (2018) 27 Cal.App.5th 516, 525 [“plaintiff seeking to set aside an irregular sale must allege tender of the full amount of the loan to maintain *any* cause of action that either is based on the wrongful foreclosure allegations or seeks redress from that foreclosure”].) The demurrer to the prior complaint was sustained for its failure to allege an offer of equity.

The FAC includes a new allegation that Yang “is ready, willing, and able to tender the amount necessary to reinstate or satisfy the secured obligation[.]” (FAC, ¶ 54.) But such a conclusory statement alone is not enough: “Merely stating one is ready, willing, and able to tender payment upon learning what is owed is insufficient tender where the notice of default informed the debtor of a minimum amount owed and the debtor tendered no payment of at least that amount.” (*Crossroads Investors, L.P. v. Federal National Mortgage Assn.* (2017) 13 Cal.App.5th 757, 791; see *Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 315 [plaintiff “only alleged that she was ‘willing and able to tender funds.’ Such an allegation was insufficient to satisfy the tender requirement”].) Likewise, the allegation that the deed of trust was invalid and unenforceable (see FAC, ¶ 54), is a mere legal conclusion and there are no facts alleged to support it.

Yang also argues that tender was also excused due the alleged violations of HBOR. “True, there are exceptions to the rule, including when its enforcement would be inequitable” (*Morris v. JPMorgan Chase Bank, N.A.*, *supra*, 78 Cal.App.5th at p. 315), but Yang has not identified any particular exceptions in his opposition nor cited any authority in support. Generally, irregularities in foreclosure procedures render a sale voidable, not void, and do not excuse the requirement for tender. (See, *Ram v. OneWest Bank, FSB*

(2015) 234 Cal.App.4th 1, 17–20.) The FAC does not allege facts showing the purported HBOR violations made tender difficult or impossible so as to excuse Yang from the requirement.

Accordingly, the demurrer to the fifth cause of action is SUSTAINED. The prior demurrer was sustained on account of the complete absence of an allegation of tender, which Yang attempted to correct. This will now be Yang’s first opportunity to correct the defective attempt at alleging tender, and thus leave to amend is granted pursuant to his request.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 6

25-CIV-00912 YANG MIN YANG VS. JOSEPH GIRAUDO, ET AL

YANG MIN YANG
JOSEPH GIRAUDO

JONATHAN E. MADISON
DAVID M. LIU

Defendant Royal Business Bank's Motion to Strike Portions of Plaintiff's First Amended Complaint

TENTATIVE RULING:

Defendant Royal Business Bank's Unopposed Motion to Strike Portions of Plaintiff Yang Ming Yang's First Amended Complaint is GRANTED.

Defendant Royal Business Bank moves to strike the fourth cause of action, as the First Amended Complaint is not verified. Plaintiff has not filed any opposition.

The fourth cause of action is for quiet title. (Aug. 7, 2025 First Amended Complaint, ¶¶ 48–57.) A complaint seeking quiet title “shall be verified.” (Code of Civ. Proc., § 761.020.) The FAC alleges Plaintiff Yang Ming Yang “will” verify the pleading, but he has failed to do even after the defect was brought to his attention for at least a third time. (See Dec. 5, 2025 Motion to Strike, p. 6, ¶ 3; Jul. 15, 2025 Order, p. 5, ll. 21–24; Mar. 13, 2025 Demurrer, p. 8, ll. 21–23.) “Where the complaint must be verified and is not, it may be stricken on motion.” (5 Witkin, Cal. Procedure (6th ed. 2026); see *Silcox v. Lang* (1889) 78 Cal. 118, 122–123.)

Accordingly, the motion to strike is GRANTED and the fourth cause of action is now stricken.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7

25-CIV-04482 CARLOS TAPIA, ET AL VS. CHRISTINA CORPUS, INDIVIDUALLY AND
IIN HER OFFICIAL CAPACITY, ET AL

CARLOS TAPIA
CHRISTINA CORPUS, INDIVIDUALLY AND
IN HER OFFICIAL CAPACITY

GRANT A WINTER
WAI SHUN WILSON LEUNG

Defendant Daniel Perea's Motion for Leave to File Second Amended Cross-Complaint

TENTATIVE RULING:

For the reasons stated below, Defendant/Cross-Complainant Daniel Perea's ("Perea") "Motion for Leave to File Second-Amended Cross-Complaint," filed May 6, 2026, is GRANTED. (Code Civ. Proc. §§ 473(a)(1); 576.)

Cross-Defendant County of San Mateo's June 1, 2026 Request for Judicial Notice ("RJN") is GRANTED. (Evid. Code §§ 452(b), (d).)

Perea's proposed Second Amended Cross-Complaint (SACCC) (*see* May 6, 2026 Rillo Decl., Ex. B), among other changes/additions, seeks to add a Petition for Writ of Mandate, which, if asserted, would seek "to compel Defendant County to provide [Mr. Perea] with a defense in this action, indemnify him in connection with this action, and to advance, reimburse, and pay for his fees and costs necessarily incurred in this action." (Proposed SACC, ¶ 112.)

Having reviewed the parties' briefing and defendant Perea's proposed SACC, the Court grants the request for leave to amend. California's judicial policy is to exercise discretion liberally to permit amendment of pleadings. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939). Here, no trial date has been set, and at last report very little discovery has occurred. The case is also not yet at issue as there are unserved parties. The initial Case Management Conference is not scheduled to take place until Nov. 2, 2026.

Further, the County does not argue that any prejudice would result from the Court granting leave to amend, aside from the County having to defend against the new Petition for Writ of Mandate. However, that is not the type of "prejudice" the Court normally considers when deciding whether to grant leave to amend. Nor does the County argue that Mr. Perea unreasonably delayed in seeking leave to amend. The County only contends that Perea's proposed Petition for Writ of Mandate lacks substantive merit, primarily because Perea (as argued by the County) previously admitted/conceded a conflict of interest (*see* Govt. Code § 955.2(a)(3)), which the County argues necessarily establishes that the County properly and reasonably declined Perea's request that the County defend/indemnity Perea in this civil case. While the County is correct that courts have discretion to deny leave to amend where a proposed new cause of action clearly lacks merit or fails as a matter of law, ordinarily, courts do not decide the validity of a proposed new cause of action in deciding whether to grant leave to amend. After leave to amend is granted, the County will have the opportunity to attack the validity of the amended pleading. (*Kittredge*

Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) In other words, this motion is not for purposes of addressing the substantive merits.

Accordingly, the Motion for Leave to Amend is granted.

Mr. Perea's proposed SACC, which was filed with the moving papers attached to the supporting Declaration of Christopher Rillo, *is not deemed filed by virtue of this Motion for Leave being granted. Mr. Perea must separately file his proposed SACC with the Clerk's Office*, as a stand-alone document, within ten (10) days of notice of entry of this Order.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 8

25-CLJ-05131 CITIBANK, N.A. VS. LUKE HEMINGWAY

CITIBANK, N.A.
LUKE HEMINGWAY

JOAN WAGNER
PRO SE

Defendant's Motion to Vacate Default and Default Judgment

TENTATIVE RULING:

The unopposed Motion of Defendant Luke Hemingway ("Defendant") to Vacate Default and Default Judgment is GRANTED pursuant to Code of Civil Procedure section 473, subdivision (d).

NOTE: Defendant's Notice of Motion contains an incorrect address for Department 20. Department 20 is now located at 1050 Mission Road, Courtroom L, South San Francisco, CA, 94080.

On motion after notice to the other party, the court may set aside any void judgment or order. (Code Civ. Proc., § 473, subd. (d).) A court may set aside a default judgment valid on its face, but void, as a matter of law, due to improper service. (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371, citing *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) A default judgment is void against a defendant who was not served with a summons in the manner prescribed by statute. (*Id.*, at p. 371.) No time limit exists to bring a motion to vacate default judgment as void for lack of proper service. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207.)

Defendant contends that he was not properly served with the Summons and Complaint and therefore the default and default judgment entered against him are void. The proof of service of the summons and Complaint provides that a registered process server served Defendant by personal service on July 12, 2025, describing Defendant as "a blonde-haired white male contact 25-35 years of age, 5'10" - 6'0" tall and weighing 120-140 lbs." (Defendant's Decl., Exh. B.) The filing of a proof of service by a registered process server creates a rebuttable presumption that service was proper. (*Chinese Theater, LLC v. Starline Tours USA, Inc.* (2025) 115 Cal.App.5th 1048, 1059, citing Evid. Code, § 647 ["The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return."].) This rebuttable presumption affecting the burden of producing evidence is merely a preliminary assumption in the absence of contrary evidence. (*Id.* at p. 1059.) The process server's return may be impeached by contradictory evidence. (*Ibid.*) Defendant rebuts this presumption by providing evidence to support that the process server's description does not match his physical description. (Defendant's Decl., and Exh. A.) Plaintiff has not opposed this Motion, and therefore Defendant's evidence is undisputed.

Accordingly, the default entered on November 5, 2025 and default judgment entered on December 4, 2025 against Defendant are VACATED. Defendant is to file and serve his Answer by June 26, 2026.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order. The Court will prepare the Order after hearing.

9:00 AM

Line 9/UD Line 2

25-UDL-01765 CAROL MALCOLM TRUSTEE OF THE CAROL MALCOLM REVOCABLE
TRUST VS. MUKTA DHANUKA, ET AL

CAROL MALCOLM TRUSTEE OF THE CAROL
MALCOLM REVOCABLE TRUST
MUKTA DHANUKA

TODD ROTHBARD

PRO SE

Defendant's Demurrer to Complaint

TENTATIVE RULING:

This is defendant Mukta Dhanuka's demurrer to Plaintiff's complaint. Plaintiff has filed written opposition. After review of all of the relevant pleadings, the Demurrer is **OVERRULED**.

Legal Standards for Demurrer

California Code of Civil Procedure section 430.30 provides that an objection to a complaint may be made via demurrer when the ground for that objection appears on the face of the complaint, or via judicial notice. (Code Civ. Proc. § 430.30, subd. (a).)

Code of Civil Procedure Section 430.10 sets forth eight possible grounds for demurrer. A demurrer founded on its subdivision (e), which arises when an allegation essential to a cause of action is missing, is called a "general demurrer." (*McKenney v. Purepac Pharm. Co.* (2008) 167 Cal.App.4th 72, 77.) Accordingly, "[a] ruling on a general demurrer is thus a method of deciding the merits of a cause of action on *assumed facts* without a trial." (*Ibid.* (internal quotations omitted) (emphasis added).) Since a general demurrer "admits the truth of all material factual allegations in the complaint," a plaintiff's ability to prove these allegations "does not concern the reviewing court. The plaintiff need only plead facts showing that they may be entitled to some relief." (*Fisher v. San Pedro Peninsula Hosp.* (1989) 214 Cal.App.3d 590, 604 (internal quotations omitted) (superseded by statute on other grounds).) However, a court reviewing a demurrer does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.) Moreover, when a plaintiff "has stated a cause of action *under any possible legal theory*," it is error to sustain a demurrer. (*Bush v. California Conservation Corps* (1982) 136 Cal.App.3d 194, 200 (emphasis added).)

Defendant only raises Section 430.10(e) as a basis for this demurrer, by essentially attempting to make three distinct arguments, which will be addressed in turn.

1. Defendant claims the Tenant Protection Act ("TPA") requires a "second 3-day notice for curable breaches." Demurrer, pg. 4, line 11. Subsequently, Defendant claims Plaintiff failed to alleged compliance with the TPA. Demurrer, pg. 5, lines 6-7. There is no legal authority for these bare propositions, and Plaintiff correctly points out that "default in payment of rent" is Just Cause and there is no "second notice" requirement. Opposition, pg. 2, lines 2-5. Nor is there any requirement of alleging compliance with the TPA generally. Defendant's arguments fail.

2. Defendant claims the 3-Day Notice is improper because it does not state when the notice period started or ended. Demurrer, pg. 5, lines 9-18. Defendant therein concedes the 3-Day Notice as attached to the Complaint, and the Court sees it is indeed attached as Exhibit B to the Complaint. Defendant's assertion is false. The 3-Day Notice has a specific box entitled "Important – Calculating your Deadline to Comply" and has a stated service date of "12/10/2025." The Court finds that this 3-day Notice, is clearly distinguishable from the notice in *Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433. Defendant's argument fails.

As such, the demurrer is OVERRULED. Defendant is to file its Answer to the Complaint within ten (10) calendar days after this hearing, i.e filed by June 22, 2026.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order. The Court will prepare the Order after hearing.

9:00 AM

Line 10/UD Line 3

26-UDL-00129 MEGAN BERRY SWADELL VS. UN HUI OONEE, MD

MEGAN BERRY SWADELL
UN HUI OONEE

PHILLIP B. ROSE
PRO SE

Defendant's Motion for Relief to Vacate Entry of Default Judgment Pursuant to Code of Civil Procedure § 418.10 (c)(d) and § 473

TENTATIVE RULING:

For reasons explained below, Defendant's motion to set aside default is DENIED.

Plaintiff's request for sanctions is summarily DENIED (a Motion for Sanctions under Code of Civil Procedure ("CCP") Section 128.5 shall be made separately from other motions ore requests) CCP § 128.5(f)(1)(A).

On April 17, 2026, a hearing was held on Defendant's motion to quash service of summons. At the hearing, the Court adopted the tentative ruling denying the motion. In the ruling, the Court ordered that "Defendant is to file and serve its responsive pleading within five court days, i.e. by 12:00 p.m. on April 24, 2026." (Minute Order, April 17, 2026.) Notably, Defendant confirmed she had received the tentative ruling but failed to timely notify Plaintiff's counsel she was contesting, and thus no argument was held on that day. Nevertheless, Defendant was thus on actual notice that the ruling and Order on April 17, 2026, was that she only had five court days, i.e. by 12:00 p.m. on April 24, 2026 to file and serve her responsive pleading.

Subsequently, the order denying the motion quash was entered on April 21, 2026, and the Court served notice to the parties on that same day. (*See* Affidavit of Service of Order Denying Motion to Quash, filed April 21, 2026.)

On April 23, the day before the court-imposed deadline to file a responsive pleading, Defendant filed a document providing notice that she *intended* to file a writ of mandate challenging the Court's ruling on the motion to quash. (*See* Defendant's Notice of Petition for Writ and Request for Additional Time to File Petition Writ of Mandate, filed April 23, 2026, at p. 3 ["Defendant respectfully requests that the Court . . . [a]ccept this notice of intent to file a petition for writ of mandate."].) This filing is mis-captioned, confusing and clearly in error. It could not be a notice of a writ actually having been filed, and also a request seeking additional time to file the very same writ. In any event, the substance of the filing contained zero notice of an actual writ filing. Instead, Defendant sought an extension of time to file a writ petition, which was promptly denied on April 27, 2026. Regardless, in the absence of any actual writ petition being filed and stay from an appellate court, nor any stay by this trial court, the above deadline remained in full effect, i.e. "Defendant is to file and serve its responsive pleading within five court days, i.e. by 12:00 p.m. on April 24, 2026." (Minute Order, April 17, 2026.)

Generally, after a motion to quash service of process has been denied,

the defendant, within 10 days after service upon him or her of a written notice of entry of an order of the court denying his or her motion . . . and before pleading, may petition an appropriate reviewing court for a writ of mandate to require the trial court to enter its order quashing the service of summons or staying or dismissing the action. The defendant shall file or enter his or her responsive pleading in the trial court within the time prescribed by subdivision (b) unless, on or before the last day of the defendant's time to plead, he or she serves upon the adverse party and files with the trial court a notice that he or she has petitioned for a writ of mandate. The service and filing of the notice shall extend the defendant's time to plead until 10 days after service upon him or her of a written notice of the final judgment in the mandate proceeding.

CCP § 418.10 subd. (c).

However, Defendant fails to provide any authority that Section 418.10(c) which would apply generally to all civil cases, has the same timeframe in an unlawful detainer context which has a much shorter deadline to respond to a summons. Nor is there any authority provided that the Court could not order a specific deadline to file a responsive pleading. Finally, as discussed below, the record does not reflect that Defendant did timely file an actual writ of mandate, and thus Section 418.10(c) is not even applicable.

Section 418.10 also then provides:

- (d) No default may be entered against the defendant before expiration of his or her time to plead.
 - (e) A defendant or cross-defendant may make a motion under this section and simultaneously answer, demur or move to strike the complaint or cross-complaint.
- Id.*, subd. (d) & (e).

Defendant argues without authority, that by filing the notice of *intent* to file a writ of mandate, her deadline to file a responsive pleading was extended to 10 days after the final judgment in the writ proceeding. However, Section 418.10(c) plainly requires that the writ of mandate must indeed be filed and that notice of the filing be filed with the Court, and none of that timely occurred. Defendant's notice of intent essentially had no legal effect. Indeed, the only thing in the Court Registry on the actual filing of any writ, is the Court of Appeals Order filed on May 8, 2026 reflecting a one sentence ruling: "The request for stay and petition for writ of mandate are denied." *Id.*

Defendant argues that she never received notice of the order denying the motion to quash. However, the Court mailed notice to the parties on April 21, 2026. (*See* Affidavit of Service of Order Denying Motion to Quash, filed April 21, 2026.) More importantly, as noted above, Defendant appeared at the actual hearing, she had received the tentative, desired to contest it though not in a timely fashion, and therefore Defendant was on actual notice of the specific deadline to file and serve a responsive pleading, to wit: "by 12:00 p.m. on April 24, 2026." (Minute Order, April 17, 2026.)

Default was then entered against Plaintiff even later on April 28, 2026, thus Defendant had several days past the Court imposed deadline to have filed a responsive pleading. Notably, this is eleven days after the hearing on April 17, 2026 (where Defendant had actual notice of her deadline to plead), is past the Court imposed deadline of April 24, 2026 to plead, and is also past the ten day period referred to in CCP Section 418.10 to the extent it even applies and had it not been shortened by the Court.

Defendant has also conceded that possession is now moot, as she has already vacated the premises. (Oppo., at p. 12; Nam Decl., ¶¶ 22, 23.) On a practical level, this means the unlawful detainer Judgment for possession can no longer be enforced, i.e. Plaintiff already has regained possession.

Notably, Defendant admits being aware of this unlawful detainer action as early as February 2, 2026. Nam. Decl. ¶ 3. Defendant admits that she “actively litigated this matter from the outset.” Mtn. MPA, pg. 3, line 7. Defendant then brought three consecutive motions to quash, the first was denied procedurally, the second granted, and the third was denied as noted above. *See*, Minute Orders of February 27, 2026, March 6, 2026 and April 17, 2026.

Defendant, though self-represented, has acknowledged in this case and before this Court, that she is a licensed California attorney. Plaintiff identifies her as such, under State Bar No. 321543. Opposition, pg. 2, line 6. Thus, Defendant is presumed to know that at any time when filing any one of her three consecutive motions to quash, she could have easily “simultaneously answer, demur or move to strike the complaint” (CCP Section 418.10(e)) which would have prevented the taking of the very default she now challenges. Especially prudent, when Defendant admits that “from the earliest stages of the litigation, Plaintiff repeatedly threatened and attempted to obtain default despite Defendant’s active participation.” Mtn. MPA, pg. 3, lines 10-11.

Finally, though Defendant also sought general relief under CCP Section 473, Defendant’s Memorandum of Points and Authorities does not even substantively argue the merits under Section 473. Defendant’s Reply Brief does make some argument for this as an alternative. Reply, pg. 5, lines 19 to pg. 6, line 2. Nevertheless, based on this record, Defendant fails to carry the burden to demonstrate any excusable neglect for such relief.

Accordingly, Defendant’s motion to set aside default is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
